

filing fees.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court **grants** Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant is sanctioned in the amount of \$460.

Plaintiff shall prepare and submit the Order.

6. 9:00 AM CASE NUMBER: L24-03699

CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON

*HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQ FOR ADMISSION ADMITTED/NON APPEARANCE FILED BY PLN ON 1/21/26

FILED BY: MERCURY CASUALTY COMPANY

***TENTATIVE RULING**

Only one motion was scheduled for 4/21/26, and it was addressed above.

7. 9:00 AM CASE NUMBER: L24-06494

CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. NADINE LOGAN

*HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT 664.6

FILED BY: ONEMAIN FINANCIAL GROUP, LLC

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was the same as that listed in the Complaint. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,856.12, plus costs associated with any procedure to have the judgment enforced, less any credits for payments received.

The Defendant made payments of \$645.

Costs include \$365 for filing fees, and \$1,141.37, for attorney fees. A detailed description of these costs was included in Plaintiff's Declaration, filed with this Motion.

Disposition

Plaintiff's Motion is **granted**. Judgment will be entered in the amount of \$10,717.49.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L24-11084

CASE NAME: WELLS FARGO BANK, N.A. VS. ZENAIDA SMITH

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background